

News

Judge Turns Up Heat on Trump’s DOJ in Epstein Files Battle

Judge Emmet Sullivan found the Justice Department still hasn’t complied with major portions of his earlier orders and is demanding answers face-to-face

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Acting U.S. Attorney General Todd Blanche testifies before a Senate Judiciary Committee confirmation hearing on his nomination to be attorney general, on Capitol Hill in Washington, D.C., U.S., July 15, 2026. REUTERS/Evelyn Hockstein

Key Points

- Judge Sullivan criticized DOJ for not providing documentation supporting Epstein file victim redactions.
- DOJ must address withheld handwritten FBI notes and failure to justify every redaction.
- Status hearing scheduled for August 13 to resolve compliance and outstanding legal obligations.

Attorney General Rod Rosenstein is turning up the pressure on the Justice Department after finding that it *still* has not complied with key portions of his previous orders in the battle over the release of the Epstein files.

Phang has been keeping audiences up-to-date with the latest breaking developments of the case on her podcast, [Sidebar with Katie Phang](#).

In an order issued Thursday, U.S. District Judge Emmet Sullivan scheduled an August 13 status hearing and directed the parties to be prepared to address three specific issues where the DOJ appears to have fallen short. The order comes just one day after the litigation took another turn, when the Justice Department missed its deadline to answer her complaint. Phang sought a court order forcing the government to finally respond, and the DOJ ultimately requested a retroactive extension. Oddly enough, the DOJ filing was made by U.S. Attorney Jeanine Pirro.

Today's order suggests Sullivan remains unconvinced by the DOJ's explanations.

Most notably, Sullivan said the Justice Department failed to provide the documentation he explicitly ordered to justify its claim that certain names redacted from the Epstein files belong to victims.

Instead, the government merely asserted that attorneys for certain individuals had contacted DOJ requesting they be treated as victims.

That wasn't enough.

"The Defendant's assertions do not comply with the Court's Order," Sullivan wrote, noting that he had required documentation supporting those claims and not simply representations from government lawyers.

He ordered the DOJ to come prepared next week to explain what evidence it will actually provide.

That issue has been central to the case ever since Sullivan ruled in July that the Epstein Files Transparency Act sharply limits the government's ability to withhold material. While the Act permits redactions for victims, the judge has repeatedly insisted the government must substantiate those claims rather than rely on conclusory assertions.

Sullivan also renewed his scrutiny of another major dispute: the FBI's handwritten interview notes.

Back in June, Sullivan ordered the government either to produce the underlying handwritten notes that formed the basis of FBI FD-302 interview reports or explain why they should remain withheld.

produced and that handwritten notes presented a greater risk of inadvertently exposing victim information.

Sullivan was not buying it.

In Thursday's order, he observed that nothing in the Epstein Files Transparency Act creates an exception for documents simply because they are duplicative. He also pointedly noted that the government itself has already published "substantially similar" draft indictments.

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The judge ordered DOJ lawyers to explain why the handwritten notes cannot simply be redacted manually, or by some other method, before being released.

The third issue concerns another statutory requirement the Justice Department has yet to satisfy.

The Epstein Files Transparency Act requires *every redaction* to be accompanied by a written justification that must be published in the Federal Register and submitted to Congress.

The DOJ has acknowledged it *intends* to comply, but the parties disagree over whether it has already missed the deadline to do so.

Sullivan ordered the government to be prepared to explain its timetable for fulfilling that obligation as well.

The hearing marks yet another setback for a Justice Department that has found itself increasingly on the defensive this week.

On Wednesday, Phang's legal team filed a motion accusing Blanche of simply ignoring the Federal Rules of Civil Procedure after missing his June deadline to answer the complaint. Phang argued the government is technically in default, noted that DOJ never sought an extension, and urged Sullivan to require Blanche to answer by August 10 rather than allow the Department to file a belated motion to dismiss.

Rather than answering the complaint, DOJ responded by filing its own motion asking Sullivan to retroactively stay all filing deadlines and give the government sixty days after the preliminary injunction proceedings conclude before it must respond. The Department argued it has been actively litigating the case, that any missed deadline was inadvertent, and that allowing additional time would promote judicial efficiency while preserving potential appellate rights.

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substantive obligations imposed by his earlier rulings, and the language of the order leaves little doubt that he believes important questions remain unanswered. Sullivan is clearly not pleased with the DOJ’s handling of this case.

With the August 13 hearing now set, DOJ attorneys will have to explain why they still have not produced documentation supporting victim redactions, why handwritten FBI notes remain withheld despite the court’s previous order, and when they intend to satisfy the Transparency Act’s requirement to publicly justify every redaction.

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